

IN THE COURT OF APPEAL OF THE
DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for mandates in the nature of Writ of Certiorari and Mandamus under Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

1. Jayanthi Somasekaran
President
Mercantile Netball Association
No. 58A, Asiri Mawatha,
Kalubowila,
Dehiwala.
2. Sanjeewani Wanasinghe
Secretary
Mercantile Netball Association
No. 58A, Asiri Mawatha,
Kalubowila
Dehiwala.

Petitioners

CA/Writ/00440-19

Vs

1. Hon. Roshan Ranasinghe M.P.
Minister of Youth and Sports
No. 9, Philip Gunawardena Mawatha,
Colombo 07.
2. Mr Harsha de silva
Secretary Ministry of
Telecommunication
Foreign Employment and Sports
No. 9, Philip Gunawardena Mawatha,
Colombo 07.

3. M. Yamuna Perera
President – Interim Committee
Netball Federation of Sri Lanka
No. 9, Philip Gunawardena Mawatha,
Colombo 7.
4. Ranjith Wimalasuriya
Secretary – Interim Committee
Netball Federation of Sri Lanka
No. 9, Philip Gunawardena Mawatha,
Colombo 07.
5. E. D. A. Lakmali Edirisinghe
Treasure – Interim Committee
Netball Federation of Sri Lanka
No. 9, Philip Gunawardena Mawatha,
Colombo 07.
6. Shermal Fernando
Director General – Department of
Sports Development
No. 9, Philip Gunawardena Mawatha,
Colombo 07.
7. I. M. Abeyratne
President – Election Committee
Netball Federation of Sri Lanka
No. 9, Philip Gunawardena Mawatha,
Colombo 7.
8. Sunil Jayaweera
Member – Election Committee
Netball Federation of Sri Lanka
No. 9, Philip Gunawardena Mawatha
Colombo 7.
9. Chandrani Pathiraja
Member – Election Committee
Netball Federation of Sri Lanka
No. 9, Philip Gunawardena Mawatha,
Colombo 7.

10. Victoria Lukshmi
President – Netball Federation of Sri Lanka
No. 9, Philip Gunawardena
Mawatha,
Colombo 07.
11. T.M.P Kumarihamy
Vice President – Netball Federation
of Sri Lanka
No. 9, Philip Gunawardena
Mawatha,
Colombo 07.
12. Champa Gunawardena
General Secretary – Netball
Federation of Sri Lanka
No. 9, Philip Gunawardena
Mawatha,
Colombo 7.
13. Sumitra Wanasinghe
Assistant Secretary – Netball
Federation of Sri Lanka
No. 9, Philip Gunawardena
Mawatha, Colombo 07.
14. Padmini Horanage
Treasurer – Netball Federation of Sri
Lanka
No. 9, Philip Gunawardena
Mawatha,
Colombo 7.
15. Hiranthi Senanayake
Assistant Treasurer – Netball
Federation of Sri Lanka
No. 9, Philip Gunawardena
Mawatha,
Colombo 7.

Respondents

Before : **Hon. M Sampath K. B.Wijeratne,J.(CA)**
: **Hon. M. Ahsan R. Marikar, J.(CA)**

Counsel: Chandana Liyanapatabedi, P.C. with Wijaya Gamage instructed by Waruni Wijewikrama for the Petitioner.

Navodi De Zoysa, S.C. for the 1st, 2nd and 6th Respondents.

Farman Cassim, P.C with Vinura Kularatne instructed by Dimuthu Kuruppuarachchi for the 10th to 15th Respondent.

Written Submissions : Petitioner; 15.11.2023
10th to 15th Respondents; 13.11.2023
1st 2nd and 6th Respondents; 25.10.2023

Argued on : 29.02.2024

Decided on : 03.05.2024

M. Ahsan R. Marikar, J. (CA)

Introduction

- 1) The Petitioner had made an application by the petition dated 1st November 2019 (as per the minutes dated 21st October 2019 counsel for the Petitioner had sought to amend the petition dated 9th October 2019 which had been allowed by Court) against the 1st to 15th Respondents.
- 2) In the said petition, the Petitioner had sought reliefs on the prayer of the petition from “a” to “n”.
 - a) Issue notice of this Application on the Respondents,

- b)** Make an appropriate order and/or orders, declaring that the election that held on the 28/08/2019, to elect the office bearers or the executive committee of the Netball Federation of Sri Lanka is null and void,
- c)** Make an appropriate order and/or orders, declaring that the purported electoral list consisting the affiliated associations / societies of Netball Federation of Sri Lanka contained, names of those associations which are not eligible to vote at an election to elect office bearers or the executive committee of the Netball Federation of Sri Lanka,
- d)** Make an appropriate order and/or orders, declaring that the calling for the nominations and the holding of the election that was held on the 28/08/2019 to elect the office bearers / executive committee of the Netball Federation of Sri Lanka is null and void,
- e)** Make an appropriate order or orders, declaring that the Election Committee mentioned above consisting of 7th , 8th and 9th Respondents has failed to formulate a lawful electoral list and/or to call for nominations and to conduct the election to elect the office bearers / executive committee of Netball Federation of Sri Lanka, as per the law and or the Sports law No 25 of 1973 and/or the Regulations made there under and/or as per the mandatory provisions that contain in the Constitution of the Netball Federation of Sri Lanka,
- f)** Make an appropriate order or orders, declaring that the 1st and/or 2nd and/or the 6th Respondents and/or the Election Committee consisting of 7th, 8th and 9th Respondents acted in violation of the direction and/or recommendation of the Appeal Advisory Board Committee and/or failed to give effect to the decision of the Appeal Advisory Board as containing in P26(b) and P26(c), by conducting an election that held on the 28/08/2019 and declaring the results thereof,

- g)** Make an appropriate order and/or orders, preventing the 10th, 12th, 13th, 14th and 15th Respondents acting and/or functioning, either individually, collectively and/or in consortium as office bearers or executive committee of Netball Federation of Sri Lanka and/or managing the affairs of the Netball Federation of Sri Lanka, forthwith,
- h)** Make an appropriate order and / or orders declaring that the present president elect namely, the 10th Respondent's appointment to the presidency of NFSL is null and void and the 10TH Respondent has no right in law to function as the president of NFSL and is not eligible to be elected or stand for election in the future in NFSL.
- i)** Grant and issue a mandate in the nature of a Writ of Certiorari, quashing the purported electoral list marked as that contained in documents marked as P7(b), P8(a), P8(b), P12(a), P12(d) and as well as the notices by which the nominations have been called for by documents marked above as P8(a)/P12(a) and/or the decision of the Election Committee that contained in the document marked as P 19 and/or the decision of the Election Committee calling upon the election to be held on the 28/08/2019 marked above as P12(a), P14, and P19,
- j)** Grant and issue a mandate in the nature of Writ of Mandamus directing the 1st Respondent - the Hon' Minister of Sports to, dissolve the currently existing and/or functioning purported office bearers of Netball Federation of Sri Lanka and to appoint an interim committee, pending the holding of proper elections to appoint office bearers to the Netball Federation of Sri Lanka and to hold such election strictly acting in terms of the law and/or as per the Sport Law No 25 of 1973 and the Rules and Regulations made there under,

- k)** Grant and issue a mandate in the nature of a Writ of Mandamus directing the 1st Respondent the Hon' Minister of Sports and/or 2nd and/or 6th Respondents to give directions to such interim committee to declare a proper and lawful electoral list and or call for and to accept the nominations and to hold an election and declare the results thereof strictly acting in terms of the Sports Law No 25 of 1973 and the Rules and Regulations made there under and as per the mandatory provisions that contain in the constitution of the Netball Federation of Sri Lanka and the law,
- l)** Grant punitive damage against the Respondents commensurate with their respective wrong doing or misdeeds,
- m)** Award costs; and
- n)** Grant such other and further relief as to Your Lordships' Court shall seem meet.

However, when this matter was taken up for argument on 13th September 2023 the Counsel appearing for the Petitioner had agreed to confine his reliefs to prayer “**k**”, “**l**” and “**m**”.

- 3) The prayer “**k**”, “**l**” and “**m**” are as follows;

k) Grant and issue a mandate in the nature of a Writ of Mandamus directing the 1st Respondent the Hon' Minister of Sports and/or 2nd and/or 6th Respondents to give directions to such interim committee to declare a proper and lawful electoral list and or call for and to accept the nominations and to hold an election and declare the results thereof strictly acting in terms of the Sports Law No 25 of 1973 and the Rules and Regulations made there under and as per the mandatory provisions that contain in the constitution of the Netball Federation of Sri Lanka and the law;

- l) Grant punitive damage against the Respondents commensurate with their respective wrong doing or misdeeds;
- m) Award costs; and

Facts of the Petitioner's case

- 4) The Petitioner as I have stated above had confined his reliefs to prayer “k”, “l” and “m” of the petition dated 1st November 2019. Therefore, the facts pertinent to the other reliefs are not necessary to be considered in the instant application.
- 5) The said “k”, “l” and “m” reliefs are pleaded to obtain Writ of Certiorari quashing the documents P7 (b), P8 (a), P8 (b), P12 (a), P12 (d), P14 and P19.
- 6) The application of the Petitioner is to quash the decision of the election committee to accept the nominations of the 10th to 14th and 15th Respondents and to challenge the Elections held on 28th August 2019 to elect the office bearers of the Netball Federation of Sri Lanka, which will be called hereinafter NFSL.
- 7) On the said basis the Petitioner had sought to quash the electoral list, nominations and the purported decisions of the election committee.

The 1st, 2nd and 6th Respondents Objections

- 8) The 1st, 2nd and 6th Respondents had objected for the application made by the Petitioner on the basis that the Petitioner's application is futile, the Petitioner has not come with clean hands, and is misconceived and not entitled to seek any equitable and/or discretionary relief.
- 9) Further, the said Respondents have stated that they have dealt with the Petitioner, acted in good faith and the 10th Respondent did not function as the Vice President of the NFSL at the time of the suspension of the NFSL.

- 10) Furthermore, the Respondent have contended, that the Mercantile Netball Association failed to submit objections in respect of the voters list within the stipulated period.
- 11) Further, the Office Bearers appointed at the impugned election in 2019 have already completed their term and 3 successive elections have been held in the years 2020, 2021 and 2022.
- 12) On the said grounds the reliefs sought by the Petitioner to quash the electoral list, notices and nomination list in respect of the election held in 2019 is futile. On that, the said Respondents have moved to dismiss the petition.

Objections of the 10th to 15th Respondents

- 13) The 10th to the 15th Respondents had filed their objections and contended that the Petitioners have misinformed the facts in the petition dated 1st November 2019.
- 14) The Petitioners have contradicted themselves in paragraph 16 of the petition by stating all those associations whose names appear on Annexure No. 2 marked as P7 (b) were not entitled to vote. However, the said Annexure marked P7 (b) to the petition includes the name of Badulla District Netball Association, an association which the Petitioners also claimed to be illegal.
- 15) There the Petitioners themselves have contradicted their own position stating only 3 member organizations were purportedly illegal and producing documents contradicting the said position.
- 16) The Petitioners have failed to produce the letter of resignation of the 10th Respondent which is marked and produced as R1 and R1 (a).
- 17) The 1st Petitioner was the General Secretary of the executive of the NFSL that was suspended and dissolved on 25th April 2019. Other than the said

facts these Respondents have also stated the same facts in their objections as per the 1st, 2nd and 6th Respondents.

Disputed facts

- 18) When this matter was taken up for argument all the parties agreed to conclude the matter without an argument and agreed to accept the judgement on the written submissions already tendered after confining this case to the Petitioners prayers “**k**”, “**l**” and “**m**”.
- 19) On the said grounds I have to consider the following points to arrive at my conclusion that the reliefs sought by the Petitioners can be granted or whether the Petitioners can maintain this action.
 - I. Can the Petitioners challenge the electoral list, nomination and or the purported decision of the election committee contained on document marked P19?
 - II. Had the purported election been held in 2019?
 - III. If so, at this stage can the Petitioner seek reliefs to quash the electoral list, nomination and or the purported decision of the election committee?
 - I. Can the Petitioners challenge the electoral list, nomination and or the purported decision of the election committee contained on document marked P19?**
- 20) The Petitioners have restricted their claim to prayers “**k**”, “**l**” and “**m**” of the petition. In considering the prayer “**k**” the Petitioners have sought a Writ of Certiorari quashing P7 (b), P8 (a), P8 (b), P12 (a) read with P12 (b).
- 21) I reproduce the aforesaid documents. The said P7 (b) is the electoral list which contains the affiliated sports Associations of Netball.

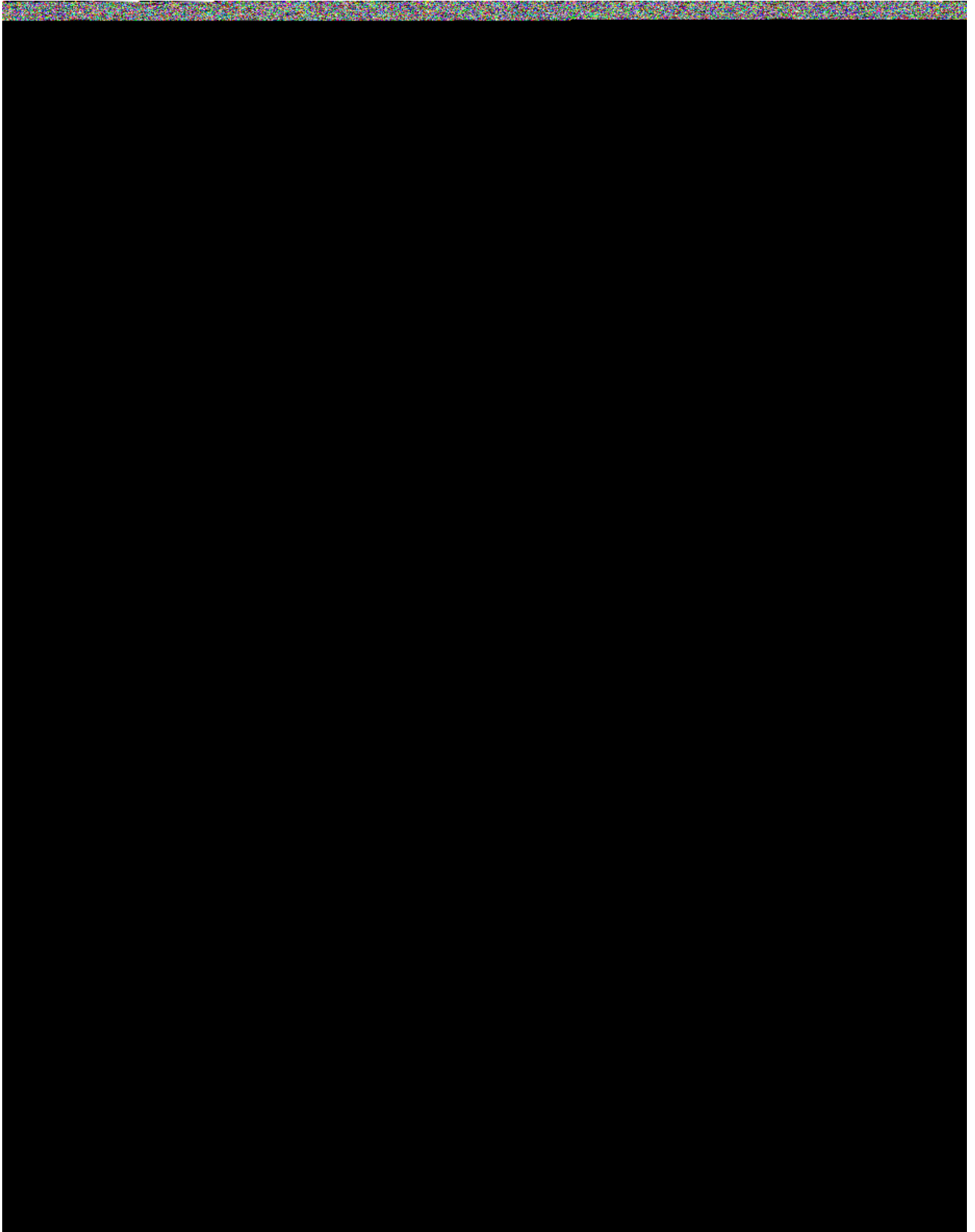


Figure 1; P7 (b)

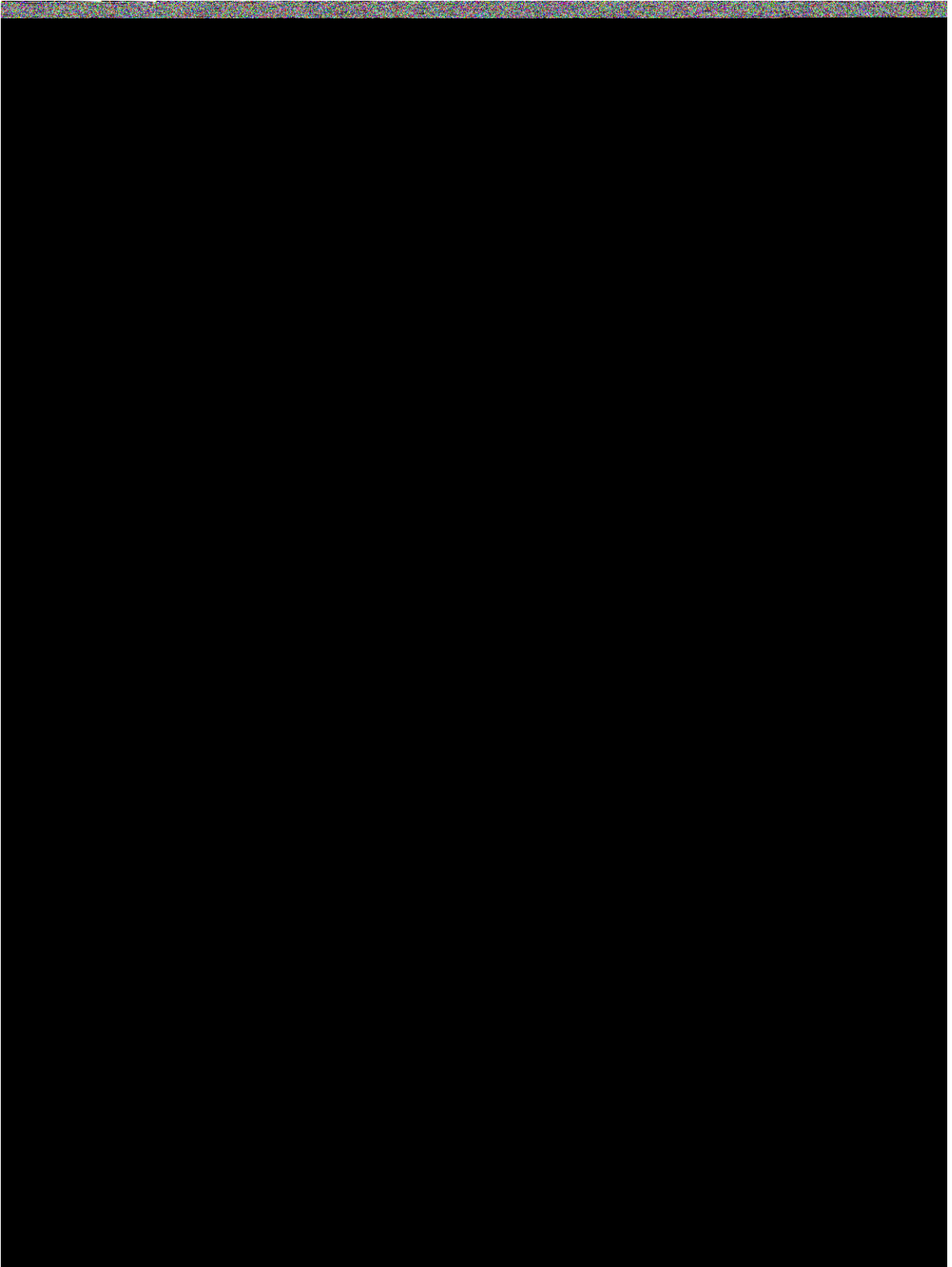


Figure 2;P8 (a)

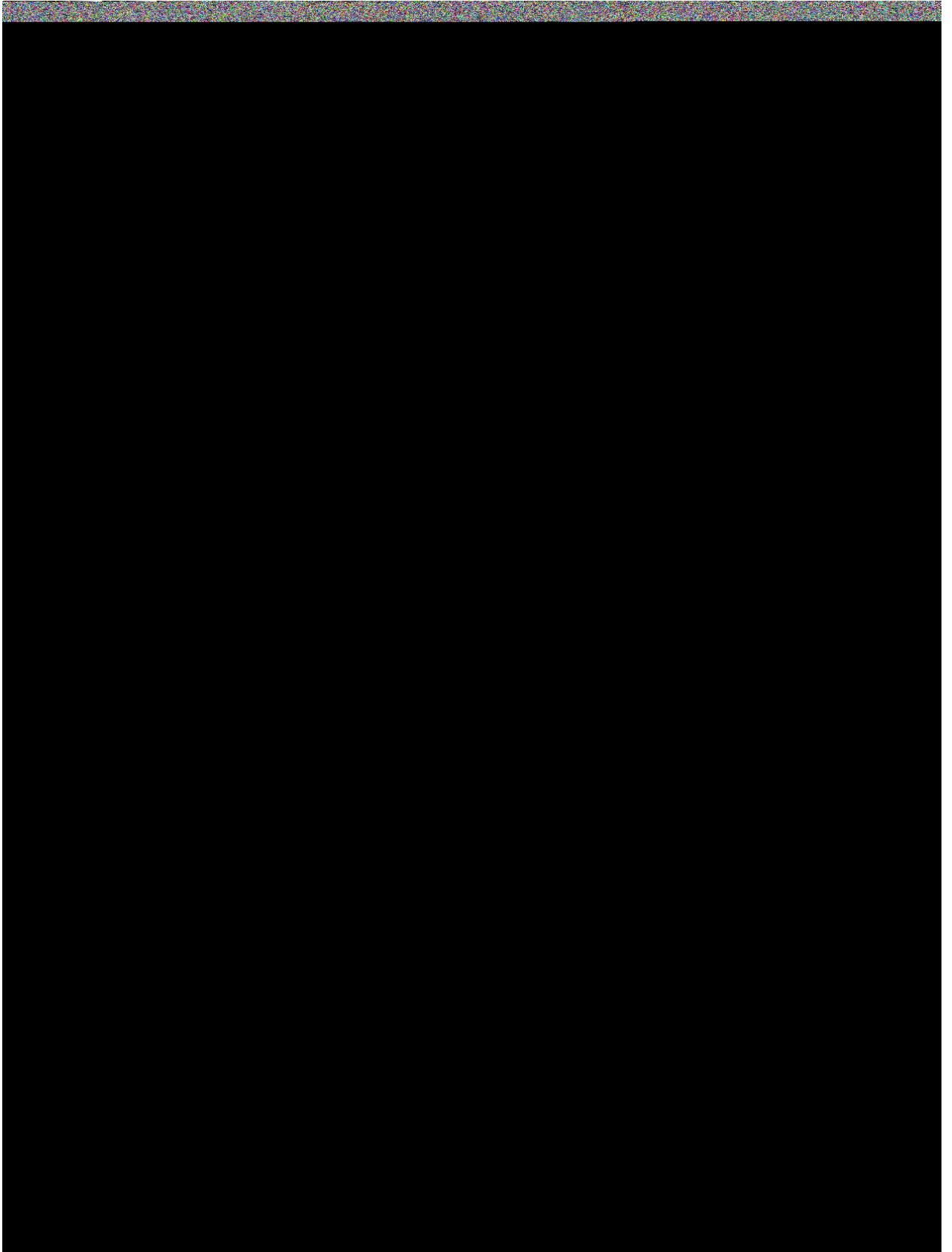


Figure 3; P8 (b)

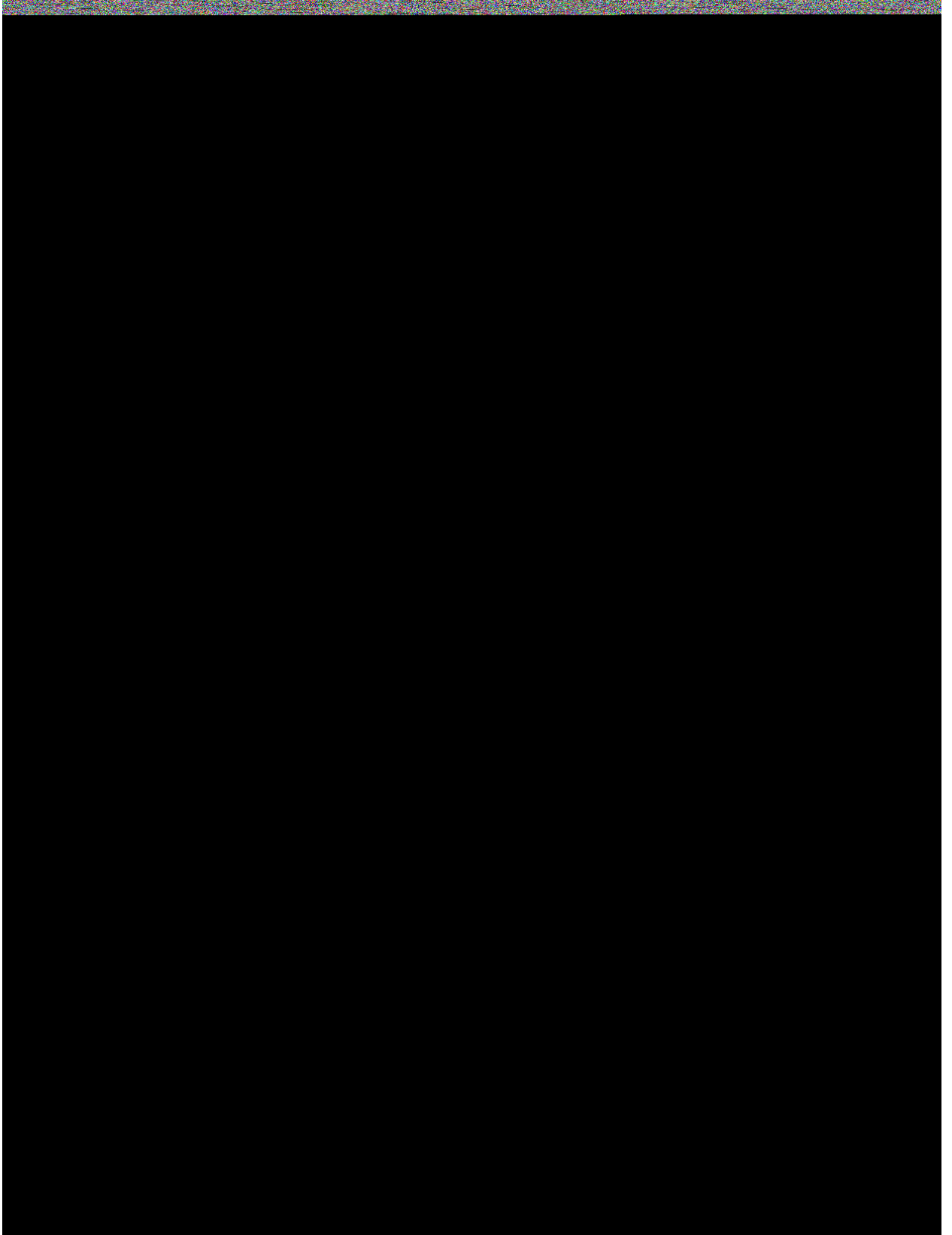


Figure 4; P12 (a)

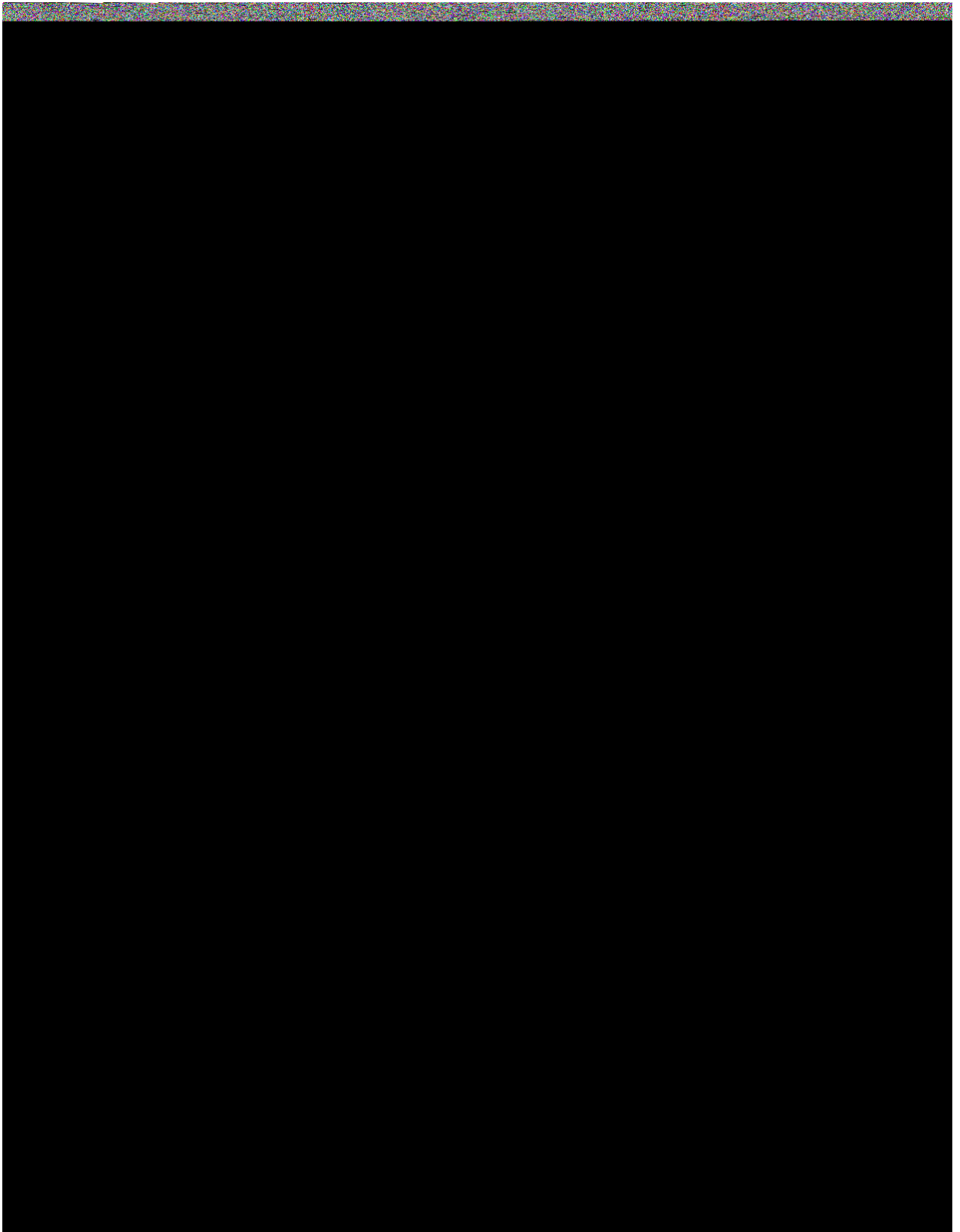


Figure 5; P12 (d)

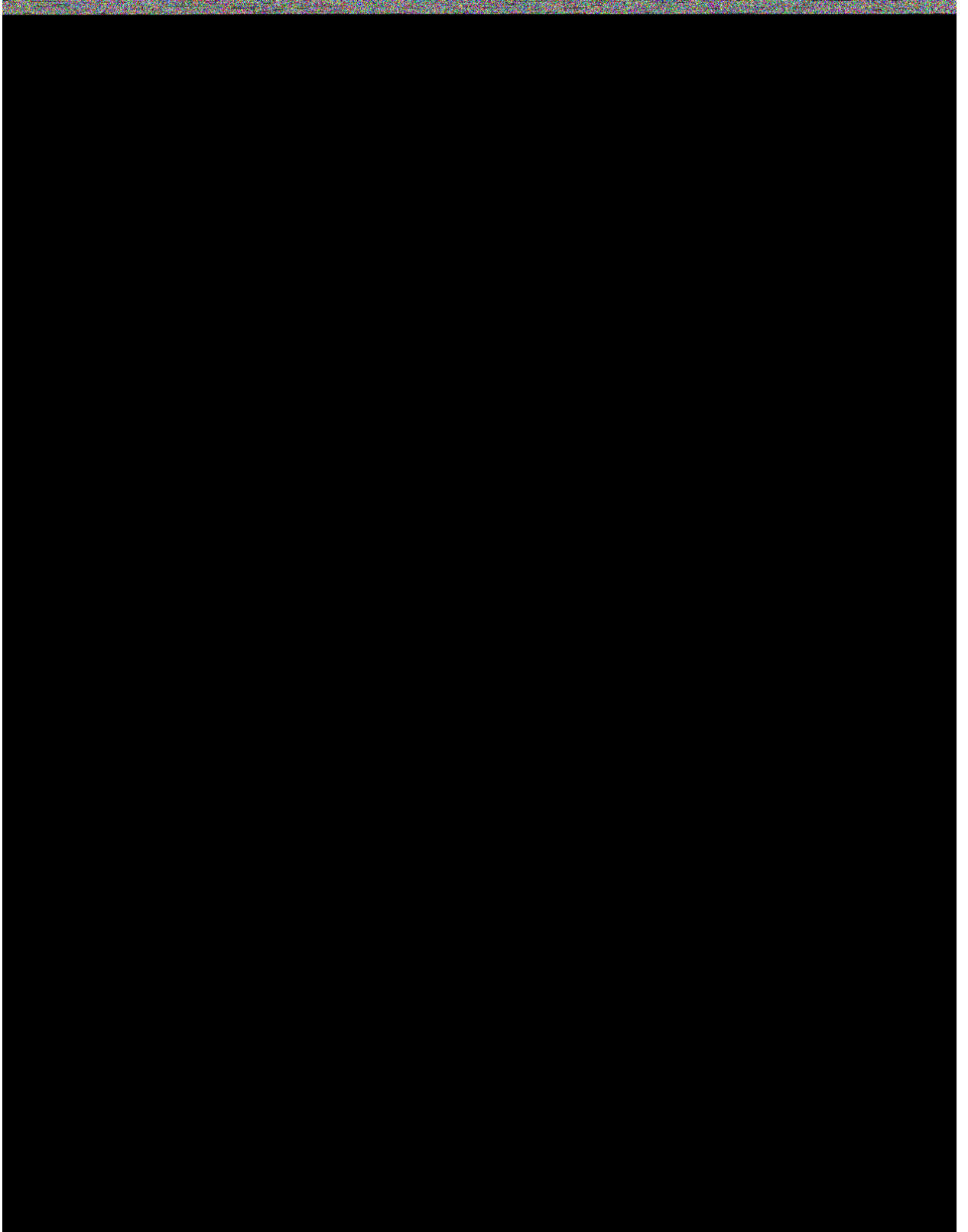


Figure 6; P14

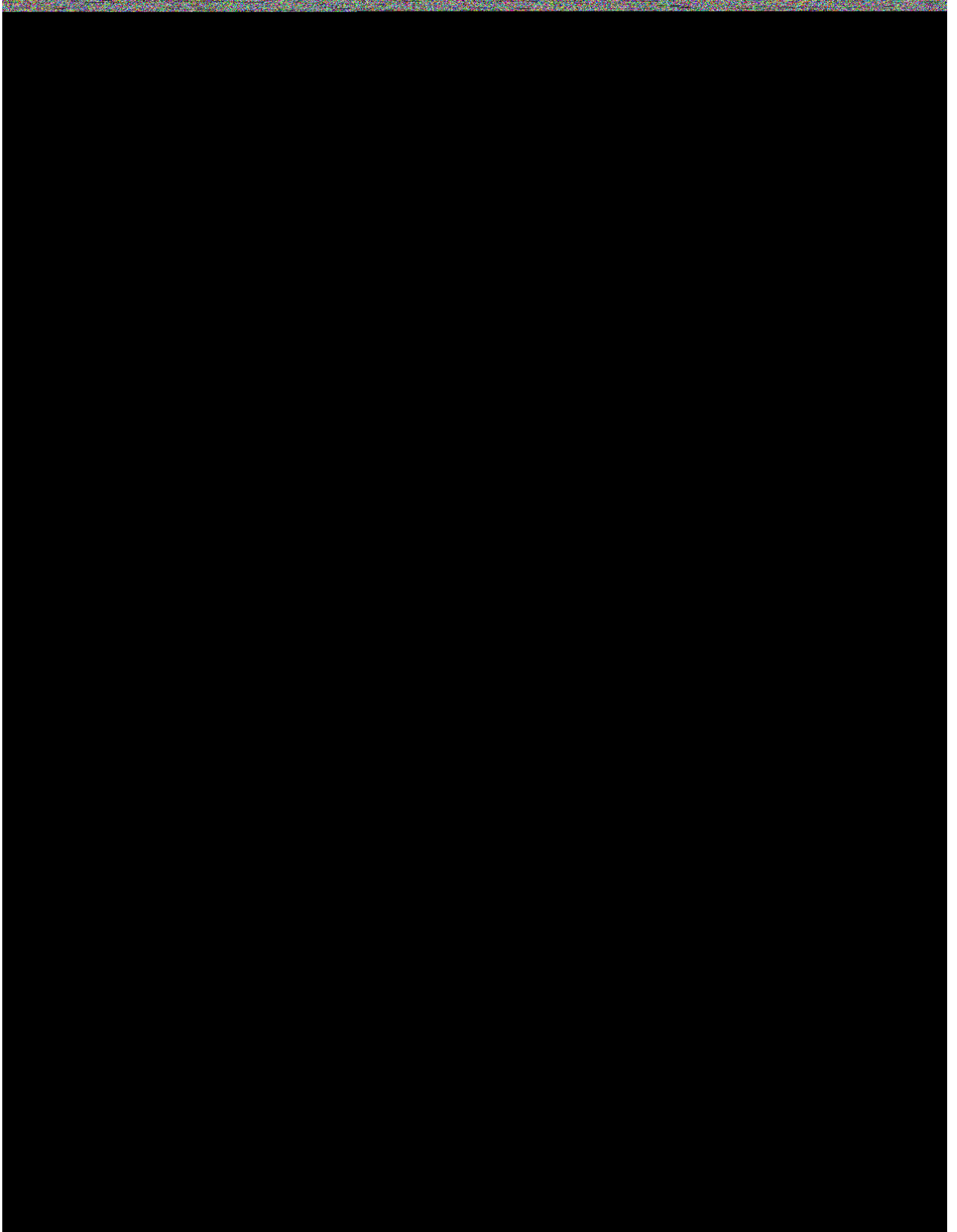


Figure 7; P19

- 22) Document P8(a) is a letter issued by the President of the Election committee to verify the qualification of the affiliated Netball Association. The said P8(a) document was issued on 24th June 2019.
- 23) P8(b) is also the list referred to in P7(b) which is the affiliated Netball Associations. P12(a) is a document issued by the President of the election committee referring that there is no objection for the P12 (d) affiliated Associations to participate in the election conducted for the years 2017 and 2019. This letter was issued on 9th July 2019. P19 is a letter issued by the President of the election committee accepting the nominations and had decided to hold the election to select the members of the NFSL Executive committee. This letter had been issued on 5th August 2019. This action had been instituted on 20th October 2019. Although the Petitioner had sought interim relief as per the minutes dated 21st October 2019 to the date which the Petitioner had supported this application on 15th June 2020, no interim relief had been sought or granted. Subsequently only objections had been filed and the matter had been fixed for argument.
- 24) It is obvious the Petitioner had not sought any interim relief or any interim orders issued to restrain the steps taken by the election committee of the NFSL by P7(b), P8(a), P8(b) P12(b) and P12(d).
- 25) Therefore, it is a futile effort of the Petitioners to seek permission from this court to quash the said orders and the documents which had been already affected by the President of the election committee of the NFSL in the year 2019.
- 26) Thus, I do not see any reasons to interfere with the P19 decision taken by the President of the election committee in the year 2019.

II. Had the purported election been held in the 2019?

- 27) There is no dispute between the parties that the purported election of the NFSL was held in 2019 as scheduled by the President of the election committee. Thereafter in the years 2020, 2021 and 2022 elections had been held and the executive committee had been successfully appointed.
- 28) The Petitioner had never raised any objection for any of the said elections from 2019 onwards. There is no interim order issued by this court when this case commenced and or the Petitioners had never supported an interim order to stop the aforesaid election.
- 29) In the said circumstances, the election committee appointed in 2019 had successfully held the elections to appoint the executive committee of the NFSL.

III. If so, at this stage can the Petitioners seek reliefs to quash the electoral list, nomination and or the purported decision of the election committee?

- 30) As per my analysis in the aforesaid paragraphs the Petitioners had not taken this matter seriously in the year 2019. Although they had pleaded, they had not supported any interim reliefs pleaded in this prayer against conducting the 2019 NFSL elections to appoint the executive committee members.
- 31) The election committee had been led by a retired High Court Judge and two other members who have a wealth of experience in the sports sector.
- 32) On perusal of the documents submitted by the Petitioners and the Respondents the Chairman of the election committee had by P7(a) held a meeting and decided the P7(b) societies are eligible to vote and the said matters are Gazette by P7(d) and P7(e) documents.

- 33) Subsequently, by P19 document the Chairman of the election committee had specified there were no objections raised with regard to the electoral list and had decided that the P7(b) electoral list members are eligible to vote for the aforesaid election and decided to hold the election on 28th August 2019.
- 34) This application had been filed on 23rd October 2019 and the Petitioner due to various reasons had taken dates to support this application. The matter had been supported on 15th June 2020 and no interim relief had been sought by the Petitioner.
- 35) Therefore, on the face of it the Petitioners had not acted due diligently to proceed with this action.
- 36) The election pertinent to this action had already been concluded in the year 2019 and the said members' period had also ended and the letters issued by the chairman and the members of the election committee had never been challenged.
- 37) In the said circumstances, it is a futile application to grant the reliefs prayed for in the prayer "k", "l" and "m" at this stage.
- 38) In the case of **Warnakulasuriya Joseph Nishantha Peries V Commissioner General of Excise and 9 others**¹ the Court held that;

"This brings me to the aforementioned relief that has been sought by the Petitioner. The learned State Counsel submitted that this application is futile as the period for which the license has been sought has expired. He submitted further that as the Writ of Mandamus is a discretionary remedy, this Court would not exercise its discretion where it would be futile to do so or where it would be an exercise in vain".

- 39) In the said case Justice Sisra Abrew had held issuing a writ in the said case is futile as the purpose of the Petitioner will not be served. Therefore, in the instant action, a Certiorari Writ at this stage cannot be issued for

¹CA(Writ) 34/2020 (C.A Minutes dated 15.2.2021)

unchallenged documents by the Petitioners and the particular subject and the purpose had been fulfilled already without any legal objections.

- 40) Further in the case of **Anuja Yoganathan V University Grants Commission²** it was held;

"Certiorari will not be issued to quash a particular exercise of powers if it be futile to do so because it is not more operational or it has had its effect.

Justice Anil Gunaratne in C.A.67/2008. A writ will not issue where it would be vexatious or futile (1958) 61 NLR 491.496. The Court will have regard to the special circumstances of the case before it, issue a writ of certiorari. The writ of certiorari clearly will not issue where the end result will be futility, frustration, injustice and illegality. Marsoof J. in Ratnasiri Vs. Ellawala(2004) 2 SLR 189. Marsoof J followed Soza J's word cited page 90 citing H. Wade administrative Law 5th Ed.Pg.546-591 Even Mandamus had been refused by courts on many occasions based on futility."

- 41) In the aforesaid case Justice Anil Gunaratne had decided a Writ of Certiorari will not be issued if the end result will be futile. Further, there is no document to prove that the order made by the election select committee is illegal. In the aforesaid circumstances I do not see any ground that the Petitioners have satisfied the Court to issue Writ of Certiorari under prayers **"k"**, **"l"** and **"m"** of the petition dated 1st November 2019.

² CA (Writ) 664/2011 (C.A Minutes dated 13.9.2016)

CONCLUSION

- 42) In view of the aforesaid facts, document and in considering the written submission, I dismiss the petition dated 1st November 2019 subject to payment of tax cost to the Respondents.

Judge of the Court of Appeal

M Sampath K. B. Wijeratne, J. (CA)

I agree

Judge of the Court of Appeal